



ARLINGTON COUNTY, VIRGINIA

County Board Agenda Item
Meeting of December 16, 2023

DATE: November 16, 2023

SUBJECT: Establishing Ranked Choice Voting as the election method for Arlington County's County Board primary elections.

ISSUES: Ranked Choice Voting ("RCV") was the election method used in the June 2023 County Board primary election, and the Board is considering using this method in all County Board primary elections beginning with the June County Board primary elections in 2024. State law provides that any changes to an election must occur at least 90 days before such an election. A draft resolution has been prepared should the Board decide to adopt RCV as the election method for County Board primary elections and is available in Appendix A.

SUMMARY: This County Board will determine if RCV is to be used as the method of election for all County Board Primary Elections.

BACKGROUND: In July 2020, the Virginia General Assembly passed a bill to amend the Code of Virginia [section 24.2-673.1] to allow localities to implement RCV in elections of members of a county board of supervisors or a city council. In fall 2021, the Arlington Electoral Board conducted a public engagement with Q&A and a "mock election" and held a joint work session with the County Board to discuss this voting method.

After reviewing feedback from public engagement on the topic in fall 2022, the County Board adopted the pilot use of RCV as the election method for the June 2023 County Board primary election. The Board collected public feedback on using RCV during and after the 2023 primary to understand voter and resident experiences and opinions on this new voting method.

DISCUSSION: Generally speaking, RCV is an election method that allows voters to rank candidates in order of preference. Under Virginia state law, in years where only one seat is open, like the upcoming June 2024 County Board primary election, a 51 percent threshold would be used to determine a winner.

In elections with two open seats, candidates must secure 34 percent of votes cast to win in an election determined by RCV. If no candidate receives 34 percent of voters' first-ranked choices, the race is decided by one or several additional tabulation rounds using voters' ranked preferences. The candidate with the fewest votes is eliminated, and voters who ranked that candidate as their first choice will have their votes count toward their 2nd choice. This process continues until two candidates emerge with 34 percent of the vote each. This differs from previous elections, where the top two vote-getters win or advance to the general election in the case of a primary election.

County Attorney:

MNC 

Staff: David R. Barrera, CBO

The 2023 Arlington County Board Primary Election was a two open seat election that was decided by RCV. After 6 rounds of tabulations, two candidates were nominated and advanced to the General election. The June 2024 County Board primary election, however, will be a one seat election and will therefore use the 51 percent threshold to determine a nomination. To adopt the use of RCV to the general election, the County Board must formally adopt its use at least 90 days before the election. A draft resolution has been prepared should the Board decide to adopt RCV as the election method for all County Board primary elections and is available in the appendix.

PUBLIC ENGAGEMENT:

Level of Engagement: Communicate & Consult

Outreach Methods: The Arlington Electoral Board began its discussions after HB506, the state-enabling legislation, took effect in July 2021. At its public meetings, the Electoral Board reviewed analyses of Ranked Choice Voting and its application in Arlington.

In August 2021, the Arlington Office of Elections held a community event at the Bozman Government Center to educate and inform about RCV. Participants completed a model RCV ballot in a mock election facilitated by Elections staff and volunteers to select Arlington's favorite farmer's market, followed by a town-hall style Q&A about the implementation of RCV.

In October 2021, the County Board held a work session with the Electoral Board and Registrar on the RCV. This work session allowed County Board members to learn about RCV, its impacts on voters, and the specifics of tabulation. The conversation also surfaced related issues, such as independent local elections of School Boards (not eligible for RCV under state code).

Beginning in the fall of 2022, the County Board invited public input on the pilot use of RCV in the 2023 County Board primary election. The Board received more than 780 survey responses. Seventy-five percent of respondents favored implementing RCV, and a zip code analysis indicated that feedback from each region of the County was favorable, with the lowest favorability in 22207, at 63%, and the highest in 22203, at 88%.

At its December 2022 Regular meeting, the Board adopted RCV as the election method in the 2023 County Board primary election. In the following six months, the County Office of Elections completed 20 RCV outreach events in the County, provided 16 election office training classes on the tabulation process, and provided training for candidates and their campaigns.

Recent Community Feedback: In mid-June 2023, the County Board invited the public a second time to provide feedback on their opinions on and experiences with RCV in the primary election using a feedback form that closed on July 5, 2023. The feedback form questions and report results can be viewed in the Appendix of this report.

The Board received 2450 participant responses, with 2109 comments. Of those that provided demographic information (n ranged from 1308 to 1368), 54% were 60+ in age, 89% were white, 83% owned their home, and 63% lived in a Single-family, detached house.

The majority of responses were positive and supported some future implementation of RCV. When asked to rate their experience with RCV, 57% of respondents indicated “positive” or “exceptional,” while 29% and 13% indicated “negative” and “fair,” respectively. 47% of respondents also believed that RCV should be implemented in every election, while 7% stated it should only be implemented in primaries. 32% believed that RCV should not be implemented at all, and 12% reported that they didn’t know enough to take a position.

When asked about their familiarity with RCV before they voted, 56% stated they heard about it and understood it, 22% stated they were familiar, 19% said they heard about it but didn’t understand it, and 4% said they never heard about RCV. Respondents were also asked to select all the different ways they heard about RCV, and the top 5 were “News” (74%), Advocacy or Political Organization (40%), Friends or Family (30%), the County Website (29%) and the Elections Office Education Campaign (27%).

FISCAL IMPACT: The County's current voting machines supported RCV with ranking up to three choices in the 2023 June County Board primary. If adopted as the method of election for all County Board primary elections, these same machines will be used for the June 2024 County Board Primary election. The Adopted Capital Improvement Plan (CIP) FY 2023 – FY 2032 provides funding for the replacement of the current voting machines in FY 2025 at a cost of \$2,000,000.